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IN THE
Supreme Court of the United States
OCTOBER TERM, 1994

JOHN W. HECHINGER, *et al.*,
v. *Petitioners,*

METROPOLITAN WASHINGTON AIRPORTS
AUTHORITY, *et al.*,
Respondents,

UNITED STATES OF AMERICA,
Intervenor.

Petition for a Writ of Certiorari to the
United States Court of Appeals
for the District of Columbia Circuit

PETITION FOR A WRIT OF CERTIORARI

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QUESTIONS PRESENTED

In 1991, this Court held unconstitutional the veto power of the Board of Review (the "Board of Review" or the "Board") of the Metropolitan Washington Airports Authority (the "Airports Authority" or the "Authority") in *Metropolitan Washington Airports Authority v. Citizens for Abatement of Aircraft Noise*, 501 U.S. 252 (1991) ("CAAN"). Later that year, Congress amended the Metropolitan Washington Airports Act of 1986 (the "Transfer Act") to alter substantially the Board's powers and composition. Despite Congress' actions to remedy the constitutional deficiencies in the original Act identified by this Court, and the Authority's adoption of those changes, the district court held, and the court below affirmed, that the new Board of Review continues to violate separation of powers principles and is unconstitutional. Therefore, the questions presented are:

1. Whether Congress may set forth statutory procedures that require (as a condition of the lease of federal property) that a non-federal Authority defer the effective date of action on certain decisions for a prescribed period of time to allow a supposed agent of Congress the opportunity to render advice to the Authority, and, if such advice is not followed, to allow Congress a prescribed period of time in which to decide whether to overrule such decision by joint resolution strictly in accordance with the Bicameralism and Presentment Clauses.

2. Whether the decision of the court below holding that an agent of Congress may not render advice in ways that could affect the timing of decisionmaking by a non-legislative entity, even if that congressional agent does not have ultimate control over the actions of that entity, conflicts with the separation of powers jurisprudence articulated by this Court in *Alaska Airlines v. Brock*, 480 U.S. 678 (1987), by the United States Court of Appeals for the Ninth Circuit in *Lear Siegler, Inc. Energy Prods. Div.*

v. *Lehman*, 842 F.2d 1102 (9th Cir. 1988), *irrelevant portion withdrawn en banc*, 893 F.2d 205 (9th Cir. 1989), and by the United States Court of Appeals for the Third Circuit in *Ameron, Inc. v. United States Army Corps of Eng'rs*, 809 F.2d 979 (3d Cir. 1986), *cert. dismissed*, 488 U.S. 918 (1988).

3. Where Congress prescribes qualifications relating to residence, airport use and aviation expertise for the appointment of members of a Board of Review established by a non-federal airports authority to represent the interests of nationwide airport users, whether such Board of Review becomes an agent of Congress for separation of powers purposes merely because such members are appointed by the Airports Authority from non-exhaustive lists supplied by the Speaker of the House and the President *pro tempore* of the Senate and may, but need not, be Members of Congress, even though such Board members are removable only by the Airports Authority.

PARTIES TO THE PROCEEDINGS

The parties to the proceedings in the United States Court of Appeals for the District of Columbia Circuit were John W. Hechinger, Craig H. Baab, and Citizens for the Abatement of Aircraft Noise, Inc. (as plaintiffs-appellees); Metropolitan Washington Airports Authority and its Board of Review (as defendants-appellants); and the United States of America (as intervenor for appellees).

Petitioners before this Court are Metropolitan Washington Airports Authority and its Board of Review. The Metropolitan Washington Airports Authority is a non-federal public body corporate and politic created by the Commonwealth of Virginia and the District of Columbia with no parent company or subsidiary. Respondents are John W. Hechinger, Craig H. Baab, and Citizens for the Abatement of Aircraft Noise, Inc.

The United States of America exercised its statutory right to intervene in the court of appeals pursuant to 28 U.S.C. § 2403(a) (1988) because the constitutionality of an Act of Congress had been challenged.



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PETITION FOR A WRIT OF CERTIORARI

The Metropolitan Washington Airports Authority and its Board of Review hereby respectfully petition for a writ of certiorari to review the judgment of the United States Court of Appeals for the District of Columbia Circuit in this case.

OPINIONS BELOW

The opinion of the court of appeals affirming the district court is not yet reported but is reprinted at Appendix ("App.") 1a.¹ The opinion of the district court is reported at 845 F. Supp. 902 (D.D.C. 1994) and is reprinted at App. 22a.

¹ Page citations to material printed in the Appendix appear as "—a."

JURISDICTION

The opinion and judgment of the district court were entered on January 31, 1994 and were stayed by the respective orders of the district court on February 15, 1994, App. at 35a, the court of appeals on April 11, 1994, App. at 39a, and the court of appeals on October 24, 1994. App. at 20a. The opinion and judgment of the court of appeals were entered on September 27, 1994. App. at 1a. The effective date of the judgment, opinion, and mandate was stayed by order of the court of appeals entered on October 24, 1994. App. at 20a. The jurisdiction of this Court is invoked under 28 U.S.C. § 1254(1) (1988).

CONSTITUTIONAL PROVISIONS AND STATUTES INVOLVED

The following constitutional provisions and statutes are reproduced in the statutory appendix:

U.S. CONSTITUTION, art. I, §§ 1, 6, cl. 2, 7, cl. 2, 7, cl. 3; art. II, §§ 1, 2, cl. 2; art. IV, § 3, cl. 2.

Metropolitan Washington Airports Act of 1986, as amended by the Metropolitan Washington Airports Act Amendments of 1991, 49 U.S.C. app. §§ 2451-2461 (1988 and Supp. 1994).

Metropolitan Washington Airports Act Amendments of 1991, 105 Stat. 2197 §§ 7001-7004 ("1991 Amendments").

Metropolitan Washington Airports Act of 1986, Pub. L. No. 99-500, 100 Stat. 1783-373 (1986) *reenacted in* Pub. L. No. 99-591, 100 Stat. 3341-376 (1986) ("Unamended Act").

1985 Va. Acts ch. 598, as amended by 1987 Va. Acts ch. 665.

District of Columbia Regional Airports Authority Act of 1985, D.C. Act 6-90, 32 D.C. Reg. 6093 (1985).

District of Columbia Regional Airports Authority Act of 1985 Amendments Act of 1987, D.C. Act 7-32, 34 D.C. Reg. 3804 (1987).

STATEMENT OF THE CASE

A. Proceedings Below

This controversy originated with a challenge by Respondents to the constitutionality of § 2456(f)(4) of the Metropolitan Washington Airports Act of 1986, Pub. L. No. 99-500, 100 Stat. 1783-373 (1986), *reenacted in* Pub. L. No. 99-591, 100 Stat. 3341-376 (1986) ("Transfer Act"). In 1991 this Court held that the original § 2456(f)(4) was unconstitutional to the extent that it allowed the Board of Review of the Metropolitan Washington Airports Authority, a non-federal entity, to veto actions of the Authority. *Metropolitan Washington Airports Auth. v. Citizens for Abatement of Aircraft Noise*, 501 U.S. 252 (1991) ("CAAN"). Responding to this Court's concerns, Congress enacted a new § 2456(f)(4). *See* Metropolitan Washington Airports Act Amendments of 1991, Pub. L. No. 102-240, Title VII, 105 Stat. 2197 (1991) ("1991 Amendments") (codified at 49 U.S.C. app. §§ 2451-2461 (1988 and Supp. 1994)).² The Airports Authority then reconstituted the Board of Review in accordance with the amended provision. Both the amended statute and the Authority's new Bylaws (i) strip the Board of Review of all veto power; (ii) explicitly vest appointment and removal power in the Board of

² Except where specific reference to the unamended 1986 Act or the 1991 Amendments is intended, all citations in this brief to the Transfer Act (as amended) are to the U.S. Code. Pursuant to Pub. L. No. 103-272 (July 5, 1994), most laws relating to transportation formerly codified in 49 U.S.C. app. have been recodified elsewhere. The Metropolitan Washington Airports Act of 1986 as amended was not recodified and remains in force as it appears in the former codification. *See* H.R. REP. No. 180, 103d Cong., 1st Sess. 644 (1993), *reprinted in* 1994 U.S.C.C.A.N. 818, 1461. For clarity, citations herein are to the old codification, which sets forth the entire Act as amended.

Directors of the Authority; (iii) eliminate any requirement that Members of Congress serve on the Board of Review; and (iv) ensure that any congressional action taken involving the Airports Authority complies fully with separation of powers principles and the Bicameralism and Presentment Clauses. *See* Bylaws of the Metropolitan Washington Airports Authority (March 4, 1987), as amended (January 8, 1992 and April 1, 1992) ("Bylaws"), art. IV (App. at 200a).

Respondents then filed a new challenge to the constitutionality of amended § 2456(f)(4) in the United States District Court for the District of Columbia. On cross motions for summary judgment, the district court held that, even as amended, § 2456(f)(4) violates the Constitution. *Hechinger v. Metropolitan Washington Airports Auth.*, 845 F. Supp. 902 (D.D.C. 1994) (App. at 22a), as amended, 845 F. Supp. at 909 (App. at 35a).³ Specifically, the district court held that Congress continues to have "considerable control" over the Board of Review and that the Board exercises "significant [federal] executive powers," thereby violating separation of powers principles and the Appointments Clause. 845 F. Supp. at 909.

On appeal, the United States Court of Appeals for the District of Columbia Circuit affirmed the judgment of the district court as to the separation of powers issues only. The court of appeals held that (1) the requirement that the appointment of qualified members be made from non-exhaustive lists supplied by the Speaker of the House and President *pro tempore* of the Senate, coupled with the fact that Members of Congress, together with non-Members, sit on the Board, render it an agent of Congress, and (2) the ability of the Board of Review to in-

³ The district court's modification of its Opinion and Order granted a seventy-five day stay of the effective date of the decision. *See Hechinger v. Metropolitan Washington Airports Auth.*, 845 F. Supp. 902, 911 (D.D.C. 1994).

fluence the timing of Authority decisions that are subject by statute to a fixed two-tiered report-and-wait period violates separation of powers principles. *Hechinger v. Metropolitan Washington Airports Auth.*, No. 94-7036, slip op. at 18 (D.C. Cir. September 27, 1994). On October 24, 1994, the court of appeals granted the motion of the Authority and its Board of Review to stay the court of appeals' mandate and the effective date of the district court's judgment, in part to allow the Authority and its Board of Review to petition this Court for a writ of certiorari. *See Hechinger v. Metropolitan Washington Airports Auth.*, No. 94-7036 (D.C. Cir. Oct. 24, 1994) (order staying issuance of mandate and staying effective date of opinion and order of district court).

B. Statement of Facts

Pursuant to the recommendation of an advisory Commission, the Virginia Assembly enacted legislation authorizing the creation of an authority to acquire Washington National Airport and Washington Dulles International Airport (collectively, the "Washington Airports" or "Airports") by lease from the federal government. *See* 1985 Va. Acts ch. 598. The Council of the District of Columbia passed a substantially identical law. *See* District of Columbia Regional Airports Authority Act of 1985, D.C. Act 6-90, 32 D.C. Reg. 6093 (1985). The reciprocal Virginia and D.C. statutes constituted an interstate compact, creating the regional Airports Authority as a "public body corporate and politic," "independent" of all state and federal governmental bodies. *See* 1985 Va. Acts ch. 598, § 2; D.C. Act 6-90, § 3; Transfer Act § 6007 (b)(1). The two jurisdictions also agreed to consent, subject to gubernatorial and mayoral approval, to lease conditions to be set forth by Congress "that are not inconsistent with [the Virginia or District] Act." *See* 1985 Va. Acts ch. 598, § 3; D.C. Act 6-90, § 4.⁴

⁴ The Virginia and D.C. statutes provided that the Authority was to consist of 11 members, five of whom are appointed by the Governor of Virginia, three by the Mayor of the District of Columbia,

Congress then enacted the 1986 Transfer Act to authorize the Secretary of Transportation to lease the Airports to the independent regional Airports Authority. To ensure that the Authority had the input of a national-user perspective, the Transfer Act provided that the Secretary of Transportation should negotiate lease provisions for a Board of Review designed to achieve this goal. A lease was subsequently negotiated and signed by the Secretary of Transportation and the Chairman of the Airports Authority and approved by the Governor of Virginia and the Mayor of the District of Columbia. *See* Lease of the Metropolitan Washington Airports (Mar. 2, 1987) ("Lease") (App. at 173a), as amended on Dec. 30, 1991 ("First Amendment to Lease") (App. at 197a). The original Lease, following the provisions of the 1986 Transfer Act, provided for a Board of Review consisting of nine Members of Congress, eight of whom were to be members of four specific congressional committees. Lease at 13 (App. at 185a). If the Authority wished to take certain major actions (listed in old § 2456(f)(4)(B) of the 1986 Transfer Act), it was required to submit the proposed action to its Board of Review for a period of 30 days (60 days in the case of the Authority's budget). *Id.* at 13.D. (App. at 186a). The original Board of Review had the power to veto such proposed actions. *Id.* at 19 (App. at 187a).

two by the Governor of Maryland, and one by the President of the United States. *See* 1985 Va. Acts ch. 598, § 4(A); D.C. Act 6-90, § 5(A), 32 D.C. Reg. 6093 (1985); Bylaws, art. IV, § 1.a (App. at 115a; 148a; 203a-204a). To ensure a truly local Board of Directors, the Virginia and D.C. statutes further required that all members, with the exception of the presidential appointee, reside within the Washington metropolitan area. *See* 1985 Va. Acts ch. 598, 4(B); D.C. Act 6-90, § 5(B); Bylaws, art. I, § 1.b. (App. at 115a; 148a; 200a); S. REP. No. 193, 99th Cong., 1st Sess. 12-13 (1985). By amendments, the Virginia and D.C. legislatures provided for the creation of the Board of Review by the Authority. *See* 1987 Va. Acts ch. 665, § 5(A)(5); D.C. Act 7-32, § 3(C)(2) (1987); Bylaws, art. IV (App. at 136a; 168a; 203a). Its powers and authority were prescribed by the Authority in its Bylaws. App. at 200a.

On June 17, 1991, this Court, in *CAAN*, struck down the old Board of Review's veto power as unconstitutional. Thereafter Congress held legislative hearings, during which it considered the views of local residents and nationwide users of the Washington Airports as well as the views of constitutional law experts.⁵ See *Amendments to the Metropolitan Washington Airports Authority Act of 1986: Hearing Before the Subcomm. on Aviation of the House Comm. on Public Works and Transportation*, 102d Cong., 1st Sess. 102-30 (1991). On December 18, 1991, Congress amended the Transfer Act, see *Metropolitan Washington Airports Act Amendments of 1991*, Pub. L. No. 102-240, 105 Stat. 2197 (Dec. 18, 1991) (codified at 49 U.S.C. app. §§ 2451-2461 (1988 and Supp. 1994)) ("1991 Amendments"), to provide for a new Board of Review that would reflect the needed perspective of frequent airport users in a way that satisfied the concerns expressed by this Court in *CAAN*. See 1991 Amendments § 7004(a); 49 U.S.C. app. § 2456(f)(1). As Representative Hammerschmidt, Ranking Minority Member of the House Committee on Public Works and Transportation, explained:

[T]his bill creates an *advisory* board of review composed of frequent airport users who are experts in aviation matters. This board, which could still include Congressmen, would *monitor* the actions of the airports and could *recommend* changes to the airport authority. If the airports do not agree with one of these recommendations, the matter could be brought before Congress under expedited procedures. The Congress could then exercise its constitutional

⁵ Members of the Subcommittee on Aviation of the House Committee on Public Works and Transportation heard testimony regarding several proposed amendments to the Transfer Act of 1986. The proposed amendments were discussed on the floors of both the House and Senate. See 137 CONG. REC. H10344-51 (daily ed. Nov. 18, 1991); 137 CONG. REC. H11508-09 (daily ed. Nov. 2, 1991); 137 CONG. REC. S18578-80, S18606-07 (daily ed. Nov. 27, 1991).

responsibility to pass legislation blocking the offending action of the airport.

137 CONG. REC. H10347 (daily ed. Nov. 18, 1991) (emphasis added). This new Board of Review was an "oversight mechanism" to accommodate the interests of nationwide users.

Others, such as airlines, airport employees, and anti-noise activists, have groups to represent their interests. But *airport users* have no such organization. Therefore, we need a board of review to fill that important role.

Id. at H10346 (statement of Rep. Hammerschmidt) (emphasis added).

After this Court's separation of powers concerns were addressed in the 1991 Amendments, the Lease was amended to provide for a new Board of Review, and the amended Lease was approved by Virginia and the District of Columbia. *See* First Amendment to Lease (App. at 197a). The Authority amended its Bylaws setting up its new Board of Review and prescribing its composition, authority, and powers. App. at 197a. Among the specific changes were:

1. *Creation of New Advisory Board.*

The central flaw identified by this Court in *CAAN* was "the threat of the veto," which "[hung] over the Board of Directors like the sword over Damocles, creating a 'here-and-now subservience' to the Board of Review sufficient to raise constitutional questions." *CAAN*, 501 U.S. at 265 n.13 (citation omitted). The 1991 Amendments completely eliminated the veto as a condition of the federal lease. The Authority's new Board of Review is now an advisory body only, with the limited power to make recommendations to the Board of Directors with respect

to certain major decisions.⁶ See 49 U.S.C. app. § 2456 (f)(4); Bylaws, art. IV (App. at 97a; 203a-204a).

After the Directors transmit a matter to the Board of Review, the Board of Review may issue a recommendation concerning the proposed action within 30 calendar days or 10 legislative days, whichever is longer.⁷ If no recommendation is timely made, or if, even earlier, the Board of Review affirmatively indicates that it intends to make no recommendation, the Directors' proposed action may take effect immediately. See 1991 Amendments § 7002(d)(2)(C); 49 U.S.C. app. § 2456(f)(4)(C); Bylaws, art. IV, § 7 (App. at 72a; 97a; 205a). If the Board of Review makes a recommendation, the Directors may adopt it, and the proposed action also takes effect immediately. See 1991 Amendments § 7002(d)(2)(D)(i); 49 U.S.C. app. § 2456(f)(4)(D)(i); Bylaws, art. IV, § 8 (App. at 72a; 99a; 206a).

Alternatively, even if the Review Board and Directors disagree, the Board of Directors may proceed with any

⁶ In the 1991 legislation, Congress supplemented the list of specific actions which are to be transmitted to the Board of Review. The list now includes (i) the adoption of an annual budget and any amendments thereto; (ii) the authorization for the issuance of bonds and an annual plan for the issuance of bonds and any amendments to such plan; (iii) the adoption, amendment or repeal of a regulation; (iv) the adoption or revision of a master plan; (v) the appointment of the chief executive officer; (vi) the award of a contract which has been approved by the Board of Directors; (vii) any action by the Board of Directors approving a terminal design or airport layout or modification of such decision or layout; and (viii) the authorization for the acquisition or disposal of land and the grant of a long-term easement. 1991 Amendments § 7002(d)(1); 49 U.S.C. § 2456(f)(4)(B); Bylaws, art. IV, § 4 (App. at 71a; 97a; 204a).

⁷ "Legislative days" are defined here as days excluding weekends, holidays, and any day on which neither House of Congress is in session because of an adjournment *sine die*, a recess of more than three days, or an adjournment of more than three days. 49 U.S.C. app. § 2456(f)(4)(C).

proposed action so long as the Directors provide in writing to the Board of Review and Congress (i) a description of the proposed action, (ii) the Board of Review's evaluation, and (iii) the Board of Directors' response, and Congress does not enact legislation within a 60-legislative-day report-and-wait period, triggered by the Directors' response. See 1991 Amendments § 7002 (d)(2)(D)(ii); 49 U.S.C. app. § 2456(f)(4)(D)(ii); Bylaws, art. IV, § 9 (App. at 72a-73a; 99a; 206a). Of course, if Congress passes a joint resolution within that period disapproving the proposed action and if the resolution is enacted into law in accordance with Article I, § 7, then the Directors' proposed action will not take effect. See 1991 Amendments § 7002(e)(5)(A-G); 49 U.S.C. app. § 2456(f)(5)(A-G) (App. at 73a; 100a). Thus, all decisionmaking authority now resides solely in the Board of Directors, subject only to a validly enacted federal statute that can trump a proposed action by the Board of Directors.

2. Strengthening of the Appointment and Removal Powers of the Non-Federal Authority's Directors.

This Court found it "[m]ost significant" that "membership on the [old] Board of Review is limited to federal officials, specifically members of congressional committees charged with authority over air transportation." *CAAN*, 501 U.S. at 266-67. It further noted that although the appointments must be made from the lists of nominees "provided by the Speaker of the House . . . or the President *pro tempore* of the Senate' . . . there is no requirement that the lists contain more recommendations than the number of Board openings." *Id.* at 268 (citation omitted). Also troubling was that the "Transfer Act imposes no requirement that the Members of Congress who are appointed to the Board actually be users of the airports." *Id.* at 267. Finally, this Court was persuaded that under the original Transfer Act, "[c]ontrol over committee assignments . . . gives Congress effective removal

power over Board [of Review] members. . ." CAAN, 501 U.S. at 269.

The 1991 Amendments cured these concerns. See 1991 Amendments § 7002(a)(1); 49 U.S.C. app. § 2456(f)(1); Bylaws, art. IV, § 1 (App. at 69a; 95a; 203a). Membership on the Board of Review is no longer limited to specific committee members, or even to Members of Congress. It is now open to all individuals (except those residing in the local area) with experience in aviation matters and in addressing the needs of airport users. See 1991 Amendments § 7002(b)(2)(C); 49 U.S.C. app. § 2456(f)(2)(C); see also Bylaws, art. IV, § 2 (App. at 70a; 96a; 204a). In addition, appointees now must be "frequent users" of the Airports. See 1991 Amendments § 7002(b)(2)(C); 49 U.S.C. app. § 2456(f)(2)(C); Bylaws, art. IV, § 2 (App. at 70a; 96a; 204a).⁸ While the Authority's Directors still choose the members of the Board of Review from lists provided by the Speaker of the House and the President *pro tempore* of the Senate, the 1991 Amendments expressly and unconditionally permit the Directors to request additional recommendations if they are not completely satisfied with the names submitted. See 1991 Amendments § 7002(a)(1); 49 U.S.C. app. § 2456(f)(1); Bylaws, art. IV, § 1.d (App. at 69a; 95a; 204a). Finally, the removal power is exclusively in the Authority, not in Congress: the 1991 Amendments expressly authorize the Authority to remove a member of the Board of Review for cause by a two-thirds vote of the Board of Directors. See 1991 Amendments § 7002(f)(11); 49 U.S.C. app. § 2456(f)(11); Bylaws, art. IV, § 4 (App. at 78a; 105a; 204a).

⁸ In accordance with the new lease terms, the Board of Directors of the Airports Authority terminated the old Board of Review, issued new Bylaws and appointed a new Board of Review. Today, four of the nine members of the Board of Review are not Members of Congress.

REASONS FOR GRANTING THE WRIT

I. EVEN THOUGH CONGRESS FOLLOWED THIS COURT'S CONSTITUTIONAL GUIDANCE IN AMENDING THE TRANSFER ACT, THE AMENDED ACT WAS STRUCK DOWN ON NEW GROUNDS THAT REACH BEYOND THIS COURT'S PRECEDENTS.

This Court consistently grants its writ of certiorari in cases where a lower court has held an Act of Congress unconstitutional. See *FCC v. Beach Communications, Inc.*, 113 S. Ct. 2096, 2101 (1993) ("Because the Court of Appeals held an Act of Congress unconstitutional, we granted certiorari"); *United States v. Gainey*, 380 U.S. 63, 65 (1965) ("We granted certiorari . . . to review the exercise of the grave power of annulling an Act of Congress"). In large part, this is because of the strong presumption of constitutionality accorded to Acts of Congress. See *Bowen v. Kendrick*, 483 U.S. 1304 (1987) (Rehnquist, C.J. in chambers) ("'Given the presumption of constitutionality granted to all Acts of Congress,' it is . . . likely that the Court will note probable jurisdiction here . . ."), quoting *Schweiker v. McClure*, 452 U.S. 1301, 1303 (1981) (Rehnquist, J. in chambers). This presumption is especially strong when Congress has specifically considered the question of an Act's constitutionality. *Rostker v. Goldberg*, 453 U.S. 57, 64 (1981).

Here, Congress held extensive hearings, including testimony from constitutional law experts, to determine how best to satisfy the constitutional problems identified by this Court in *CAAN*. See *Amendments to the Metropolitan Washington Airports Authority Act of 1986: Hearing Before the Subcomm. on Aviation of the House Comm. on Public Works and Transportation* (102-30), 102d Cong., 1st Sess. 138-49 (1991) (testimony of Johnny H. Killian, Senior Specialist, American Constitutional Law, Congressional Research Service, and Jessica Korn, Special Guest, Governmental Studies Program,

Brookings Institution). Congress then amended the Board of Review provisions of the Transfer Act to respond to each of the points raised by this Court. Congress eliminated this Court's central concern with the original Transfer Act—namely the veto power—a concern firmly rooted in *INS v. Chadha*, 462 U.S. 919 (1983). *Hechinger*, slip op. at 2; App. at 2a. In its place a two-tiered report-and-wait provision was enacted, also based on longstanding precedents of this Court upholding comparable statutes. See, e.g., *Alaska Airlines v. Brock*, 480 U.S. 678 (1987).⁹ In addition, responding directly to language in *CAAN*, Congress both *eliminated* the requirement that Board members be Members of Congress and *added* the requirement that Board members be “frequent users” of the airports. See 49 U.S.C. app. § 2456 (f)(2)(C). Finally, the 1991 Amendments clearly vest the power both to appoint and to remove Board members in the Airports Authority.

The court below acknowledged that Congress had eliminated the provisions deemed constitutionally offensive in *CANN*. *Hechinger*, slip op. at 1, 3; App. at 2a, 3a. It nonetheless reached beyond the precedents of this Court to invalidate the 1991 Amendments because, in its view, they impose “*other*” qualifications on Board membership and create “*other* powers” that cause the new advisory Board to “continue to offend the Constitution.” *Id.* at 1 (emphasis added); App. at 2a. To the contrary, the 1991 Amendments were drafted according to blueprints supplied by this Court. Indeed, the history of the 1991 Amendments presents a “paradigm of a Congress aware of constitutional constraints on its power and carefully seeking to act within those limitations.” *Nixon v. Administrator of Gen. Serv.*, 433 U.S. 425, 482 n.47 (1977). Certainly, if all Acts of Congress are entitled to a pre-

⁹ The constitutionality of this report-and-wait period is discussed in Section II, below.

sumption of constitutionality, and if that presumption is stronger when Congress has considered constitutional questions associated with a statute, then a decision by a lower court to strike down statutory amendments crafted by Congress with the express purpose of curing constitutional infirmities previously identified by this Court warrants review on a writ of certiorari.

II. THE DECISION BELOW THAT AGENTS OF CONGRESS MAY NOT RENDER ADVICE IN WAYS THAT COULD AFFECT MERELY THE TIMING OF EXECUTIVE DECISIONMAKING CONFLICTS WITH THE SEPARATION OF POWERS DECISIONS OF THIS COURT IN *ALASKA AIRLINES* AND OF THE NINTH AND THIRD CIRCUITS.

The court below concluded that the new Board of Review, in its view still an agent of Congress, retains control over the Authority's actions in violation of separation of powers principles. While the court pointed to several factors that enabled the Board of Review to influence the Directors' decisionmaking responsibilities, *see Hechinger*, slip op. at 9-16, App. at 10a-19a, what "tip[ped] the balance" and amounted to impermissible "leverage" was the Board of Review's power to issue recommendations, which could affect whether proposed Authority actions take place immediately or are referred to Congress for a "report-and-wait" period. *See id.* at 12, 16; App. at 12a, 17a. The court of appeals essentially held that advice or influence (caused merely by delay) flowing from one branch of government to another, even in the absence of ultimate authority to coerce compliance, violates separation of powers principles. Even assuming *arguendo* that the Board of Review is an agent of Congress, which petitioners strenuously dispute, *see* Section III, *infra*, petitioners respectfully submit that the court of appeals' holding conflicts with the decisions of this Court and other federal circuits and, indeed, contravenes the original intent of the Framers with respect to separation of powers.

The distinction between "control" and "advice" or "influence" was recognized by Madison in his treatment

of separation of powers in the Federalist Papers. As the court of appeals noted, Madison cautioned against the "encroachment" of legislative power against the coordinate branches of government. *See Hechinger*, slip op. at 15 (citation omitted); App. at 16a. But Madison also stated that separation of powers "does not require that the legislative, executive, and judiciary departments should be wholly unconnected with each other." *See THE FEDERALIST* No. 48, at 308 (James Madison) (Clinton Rossiter ed., 1961). On the contrary, the Framers regarded the principle of separation of powers as allowing for advice and consultation between coordinate branches of government. *See THE FEDERALIST* No. 47, at 302 (James Madison) (Clinton Rossiter ed., 1961) (citing the British practice of allowing judges to attend and participate in deliberations of Parliament without allowing them to vote, in support of the idea that some participation by members of one branch in activities of another does not necessarily threaten virtues associated with separation of powers). The holding of the court below thus runs contrary to the Framers' more flexible view.

Decisions of this Court reflect the historical distinction between control on the one hand and advice and influence on the other, holding that Congress or its agents may properly attempt to advise and influence the Executive branch, but may not ultimately control Executive branch decisions without conforming to the Bicameralism and Presentment Clauses of Article I, § 7. In *Bowsher v. Synar*, this Court struck down certain provisions of the Gramm-Rudman-Hollings Act giving the Comptroller General—an admitted agent of Congress—"the *ultimate authority*" to determine budget cuts and thus depriving the President of any discretion in carrying out this inherently federal executive task. *See Bowsher*, 478 U.S. 714, 732-33 (1986) (emphasis added). In contrast, this Court has consistently upheld statutory requirements that agency actions be submitted to a committee of Congress for a report-and-wait period prior to taking effect, recog-

nizing that "[t]his interval gives Congress an opportunity to review the regulations and *either to attempt to influence the agency's decision*, or to enact legislation preventing the regulations from taking effect." *Alaska Airlines v. Brock*, 480 U.S. 678, 690 (1987) (emphasis added); *see also Dalton v. Specter*, 114 S. Ct. 1719 (1994) (upholding constitutionality of statute which requires base closure commission to submit recommendations to House and Senate Armed Services Committees for a report-and-wait period prior to closing bases); *Sibbach v. Wilson & Co.*, 312 U.S. 1, 7-8 (1941) (upholding six-month report-and-wait period). This control/influence dichotomy is particularly clear in *INS v. Chadha*, where this Court held unconstitutional a one-house veto provision in the Immigration and Nationality Act which allowed a single house of Congress to veto decisions by the Attorney General to cancel deportation actions, *Chadha*, 462 U.S. 919, 923 (1983), yet supported the constitutionality of a report-and-wait period during which proposed actions of the Attorney General could be stayed, reviewed and, if necessary, reversed through legislation. *Id.* at 935 n.9.

In *CAAN* itself, this Court struck down the veto provision of the original Transfer Act on the ground that Congress may not retain "control, outside the ordinary legislative process," of governmental entities it has created by statute. *CAAN*, 501 U.S. at 277. The Court in *CAAN* further held that Congress is constrained by the Article I requirements of bicameralism and presentment only when it "makes *binding* policy" or "act[s] with *conclusive* effect." *Id.* at 274 n.19 (emphasis added). This Court has never held that the Constitution forbids agents of Congress from advising or even influencing agency decisions where ultimate decisionmaking authority rests either with the agency or with Congress acting in its constitutionally prescribed legislative capacity. The idea that mere "advice" or "influence" by agents of Congress could constitute a violation of separation of powers principles is an inappropriate extension of an invention of

the D.C. Circuit in an earlier decision upon which the court below relied. See *Hechinger*, slip op. at 10-11, App. at 11a-12a, citing *Federal Election Comm'n v. NRA Political Victory Fund*, 6 F.3d 821 (D.C. Cir. 1993), cert. granted, 114 S. Ct. 2703 (1994) ("*FEC v. NRA*"). Such reasoning is not to be found in this Court's decision in *CAAN*.

In *FEC v. NRA*, which is currently pending before this Court, the D.C. Circuit invalidated a Federal Election Commission ("*FEC*") enforcement action against the NRA Political Victory Fund because the FEC Act provided for the participation of the Secretary of the Senate and Clerk of the House as *ex-officio* (non-voting) members of the commission. These employees, appointed and removable by Congress at will, were able to participate and represent the interests of Congress in the sensitive deliberations of a bipartisan agency concerning campaign finance and enforcement, issues that often involve congressional elections or even specific Members of Congress. Whatever the outcome of *FEC v. NRA*, the nature of congressional participation in federal executive decision-making implicated by the circumstances of that case bears no resemblance to the functions of a separate advisory board of frequent airport users to a non-federal Authority, which appoints and removes those board members.

In holding that separation of powers principles preclude an agent of Congress from exerting influence that may affect the timing of an agency's actions, even though such agent cannot determine the result, the decision of the court below directly conflicts with the decisions of other circuit courts that have considered a substantially identical question. Both the Ninth and Third Circuits have upheld a "two-tiered" report-and-wait provision in the Competition in Contracting Act ("*CICA*") under which the Comptroller General is vested with authority to impose waiting periods of varying lengths on agency procurement decisions prior to referring such decisions to Congress. See *Lear Siegler, Inc. Energy Prods. Div. v.*

Lehman, 842 F.2d 1102 (9th Cir. 1988), *irrelevant portion withdrawn en banc*, 893 F.2d 205 (9th Cir. 1989); *Ameron, Inc. v. United States Army Corps of Eng'rs*, 809 F.2d 979 (3d Cir. 1986), *cert. dismissed*, 488 U.S. 918 (1988). Pursuant to CICA, the Comptroller General (clearly a congressional agent, *see Bowsheer*, 478 U.S. at 732) has the authority to stay any government contracting proceeding in which a bid protest has been filed. *See Ameron*, 809 F.2d at 983-86 & n.5. The Comptroller General then has 90 working days to file a report containing his recommendations with the procuring executive branch agency. The procuring agency is not bound to accept the recommendations of the Comptroller General, just as in the present case the Authority need not accept the Board of Review's recommendation. But if the procuring agency does not accept the recommendation, the Comptroller General must file a written report with Congress explaining why the procuring agency did not accept the recommendation.

The key to the Third Circuit's holding in *Ameron* was that CICA "do[es] not *compel* procuring agencies to obey the recommendation of the Comptroller General," *id.* at 986 (emphasis added), even though the authority of the Comptroller General to file a report with Congress is a "persuasive mechanism" through which Congress may *influence* the procurement process and "compel the executive to listen" to the Comptroller General's opinions. *Id.* The Ninth Circuit in *Lear Siegler* relied upon the same compulsion/influence distinction in upholding the constitutionality of CICA. The Ninth Circuit held that the constitutionally relevant issue is whether an agent of Congress "control[s]" or retains "ultimate authority" over the administrative agency, as opposed to whether it merely "affects[s]" the agency. *Lear Siegler*, 842 F.2d at 1108. In fact, that court explicitly ruled that a legislative device allowing an agent of Congress time to influence (but not control) Executive branch agencies is constitutionally permissible. *Id.* at 1109 ("[A] report-and-wait provision

is proper even if the time is used by congressional committee members to pressure an executive official to alter a . . . decision"), citing *City of Alexandria v. United States*, 737 F.2d 1022, 1026 (Fed. Cir. 1984).¹⁰

¹⁰ The present case is even more compelling on this point than *Lear Siegler* or *Ameron*, because here the entity with whose power the Board of Review supposedly interferes is not the coordinate, co-equal Executive Branch of the federal government. The Authority is "an independent local agency," 49 U.S.C. app. § 2451(4), which is "created by the Commonwealth of Virginia and the District of Columbia . . ." 49 U.S.C. app. § 2453(2). Moreover, the Board of Review was not imposed directly on the Authority by federal statute; rather, it was created by an interstate compact, pursuant to the laws of Virginia and the District of Columbia, to satisfy a condition of the federal lease of the Airports. Thus, acceptance of the Board of Review and its advice was the voluntary act of a non-federal agency.

Until CAAN, this Court had never applied separation of powers principles to invalidate interference by a branch of the federal government with a branch of a *state or local* government or other non-federal agency. In CAAN, the exercise of a veto by specific Members of Congress may have seemed so transparent an aggrandizement of congressional power (such as that struck down by *Chadha*) that the issue of interference with a coordinate, co-equal branch (until then a linchpin of separation of powers analysis) was not addressed. Here, however, the issue is squarely presented: whether there can be a violation of federal separation of powers where there is no indication of any interference with a coordinate, co-equal branch of the federal government. See *Mistretta v. United States*, 488 U.S. 361, 381-82 (no encroachment on coordinate branch); *Bowsher v. Synar*, 478 U.S. 714, 727 ("usurpation of [federal] Executive Branch functions" by congressional agent); *Nixon v. Administrator of General Services*, 433 U.S. 425, 443 (1977) ("preventing the Executive Branch from accomplishing its constitutionally assigned functions"). Even *Springer v. Government of the Philippine Islands*, 277 U.S. 189 (1928) involved the intrusion by one branch of a federal territorial government into the affairs of a coordinate, co-equal federal territorial branch. By contrast, even this Court's opinion in CAAN reads the relevant constitutional history as suggesting that a Member of Congress may hold a state office so long as "concurrent federal office is [not] a prerequisite" for holding the putatively state office. CAAN, 501 U.S. at 270 n.16 (emphasis added), citing 1 M. FARRAND, RECORDS OF THE FEDERAL CONVENTION OF 1787, pp. 20-21, 217, 386, 389, 428-

The court below attempted to distinguish *Lear Siegler* and *Ameron* on two grounds: (1) that the Board of Review's authority is significantly greater than that of the Comptroller General, who can initiate a waiting period under CICA only when a third party files a complaint, *Hechinger*, slip op. at 14, App. at 14a; and (2) that under CICA the executive agency may override the Comptroller General's stay on a showing of urgent or compelling circumstances. *Id.*; App. at 14a-15a. The first distinction is constitutionally irrelevant because the scope of a congressional agent's constitutional authority to act is simply not dependent upon whether the act is self-initiated or whether it is in response to the request of a private citizen. Moreover, the Board of Review cannot freely target or randomly choose matters for the report-and-wait period. The 1991 Amendments (as incorporated in the Bylaws) specify precisely the areas subject to review and recommendation. As to the second distinction, the Transfer Act provides safeguards just as does CICA with respect to matters of an urgent or compelling nature. Since under the Act only certain enumerated matters are submitted to the Board, the Airports Authority remains free to act in areas related to the daily operation of the airports. See 49 U.S.C. app. § 2456(f)(4)(B); see also § 2456(f)(4)(E) (Authority permitted to service debt and to obligate and expend funds for previously authorized capital expenditures and routine operating expenses even if there is no approved budget). Thus, any differences between this case and the CICA report-and-wait provision upheld in *Lear Siegler* and *Ameron* are constitutionally insignificant.

The decisions of this Court in *CAAN* and *Alaska Airlines*, as well as the decisions of the Third Circuit in *Ameron* and the Ninth Circuit in *Lear Siegler*, represent the controlling view that the principle of separation of powers is flexible enough "to accommodate the practical

429 (1911). As indicated in Section III, *infra*, membership in Congress is no longer a prerequisite for membership on the Board of Review.

exigencies of an emerging nation" by allowing interaction between branches of government under certain circumstances. See STEPHEN G. BREYER & RICHARD B. STEWART, *ADMINISTRATIVE LAW AND REGULATORY POLICY* at 35 (3d ed. 1992). The court below has adopted the position that an agent of Congress may not play even an informational or advisory role in the decisionmaking process of an executive body. *Hechinger*, slip op. at 14-15; App. at 15a-16a. This Court has never held that such an impenetrable wall must be erected between the branches of the federal government. To the contrary, in today's widely perceived atmosphere of gridlock, it appears that the founding fathers showed remarkable foresight in framing a Constitution that "anticipates that the coordinate Branches will converse with each other on matters of vital common interest." *Mistretta v. United States*, 488 U.S. 361, 408 (1989) (upholding "statutory provisions that to some degree commingle the functions of the Branches, but that pose no danger of either aggrandizement or encroachment"). The failure of the court below to recognize the constitutional distinction between control and mere advice or influence, so persuasively established by the intent of the Framers and the decisions of this Court and other federal circuits, warrants review by this Court.

III. IN HOLDING THAT THE BOARD OF REVIEW IS A CONGRESSIONAL AGENT THE COURT BELOW MISCONSTRUED SEPARATION OF POWERS DOCTRINE WITH RESPECT TO (1) CONGRESS' POWER TO PRESCRIBE QUALIFICATIONS AND PROCEDURES FOR APPOINTMENT, (2) THE SIGNIFICANCE OF THE AUTHORITY'S EXPRESS REMOVAL POWER, AND (3) THE AUTHORITY'S APPOINTMENT OF SITTING MEMBERS OF CONGRESS TO A NON-FEDERAL BOARD.

The court of appeals held that notwithstanding the amended statute's revised criteria for membership and revised appointment and removal procedures, the Board of Review still constitutes an agent of Congress. See

Hechinger, slip op. at 9; App. at 10a. In doing so, the court below relied upon three constitutionally flawed rationales which, given their potentially sweeping implications, warrant review by this Court. First, the court of appeals concluded that the Board is a congressional agent because Congress prescribed statutory qualifications and procedures for the appointment of its members. The court reasoned that congressionally mandated qualifications relating to residence, airport use and expertise qualified a number of sitting Members of Congress, *see id.* at 8-9, and that appointment by the Authority from lists provided by the Speaker of the House and the President *pro tempore* of the Senate was tantamount to appointment of such members by Congress (even though the Authority is free to reject names on the lists and without any limitation to request additional names, *see id.*, and non-Members of Congress are surely eligible and have been appointed). Second, the court below undervalued the critical importance of the Authority's removal power in determining whether the Board of Review is an agent of Congress under this Court's separation of powers jurisprudence. *See id.* Third, the court below found the Board to be a congressional agent because five of nine members currently serve in Congress. *See id.* Each of these rationales either contradicts or is in tension with fundamental teachings of this Court.

Far from excluding Congress from the appointment process, the Constitution grants to the Senate the power to confirm the appointments of officers of the United States. U.S. CONST. art. II, § 2, cl. 2. This Court has also held that Congress has the power to set qualifications for all offices created by statute. *See Crenshaw v. United States*, 134 U.S. 99, 105-06 (1890). Congress exercised that power here in defining qualifications and setting forth procedures for the Authority to appoint members of the Board of Review. In condemning this congressional involvement in the appointment of Board of Review members, the court below unjustifiably cir-

cumscribed Congress' role in creating offices and delineating the universe of persons qualified to fill them.¹¹

The 1991 Amendments set three neutral qualifications for membership on the Board of Review—all of which support the goal of ensuring that the Board will protect the interests of nationwide users of the airports. The first criterion, that members not reside in Maryland, Virginia, or the District of Columbia, simply ensures that the Board will reflect national rather than local interests.¹² The second qualification, that members have experience in aviation matters, imposes the unremarkable requirement that Board members possess knowledge of the relevant subject area. The third qualification, that Board members be frequent users of the airports, was specifically suggested by this Court in *CAAN* as a way of ensuring

¹¹ The court below did not hold that the qualifications requirements and appointment procedures violated the Appointments Clause, but only that they indicated that the Board of Review was an agent of Congress for separation of powers purposes, *see Hechinger*, slip op. at 9; App. at 9a-10a; the district court held that the analysis in either case "should [not] be any different." 845 F. Supp. at 909; App. at 33a.

¹² The interests of local residents are already represented by the Board of Directors of the Authority itself since 10 of the 11 Directors must reside within the Washington Standard Metropolitan Statistical Area. This requirement, first enacted by Virginia and the District of Columbia in chartering the Authority, may explain why Congress proposed that a mechanism to provide for consideration of the views of nationwide users should become a condition of the federal lease. *See* 49 U.S.C. app. § 2456(e)(1) and (2).

The importance to Congress of ensuring a nationwide user perspective is evidenced by the amended Transfer Act's retention of the so-called "drop-dead" clause, which prevents the Authority from taking certain actions in the event a judicial order renders the Board of Review unable to carry out its functions. 49 U.S.C. app. § 2456(f)(6). While the court below held, without citation or analysis, that the presence of the "drop-dead" clause is evidence that the Board of Review is an agent of Congress, the clause is more properly regarded as nothing more than an ordinary non-severability provision demonstrating Congress' intent that a guaranteed nationwide user perspective be included in the Lease.

that Board members actually have a user perspective on the airports. See *CAAN*, 501 U.S. at 267.

Under the rubric of "look[ing] beyond explicit terms" of a facially valid statute, the court below held that since "as a practical matter, relatively few individuals other than members or alumni" of transportation-related congressional committees will be able to meet the statutory criteria for Board membership, the statute even as amended fails to satisfy the concerns previously expressed by this Court. See *Hechinger*, slip op. at 8; App. at 8a. In fact, four current Board members are not Members of Congress. While three of these are former Members of Congress, the court of appeals gave no principled reason why the presence of congressional "alumni" should raise constitutional concerns. Moreover, the court below was clearly wrong in underestimating the number of potentially qualified persons who live outside the region, frequently use the airports, and are knowledgeable about aviation matters, e.g., state officials, association and aviation industry representatives, academics, former federal employees and many others.

This Court also has upheld the use of lists as a constitutionally permissible method for Congress to participate in the appointment process. See *Mistretta v. United States*, 488 U.S. 361 (1989) (upholding Congress' power to require the President to appoint three federal judges to the United States Sentencing Commission, having considered a list of six judges recommended by the Judicial Conference of the United States); *Bowsher*, 478 U.S. at 727-28 (this Court did not dispute a statutory requirement that the Comptroller General be appointed by the President from a list of three candidates submitted by the Speaker of the House and the President *pro tempore* of the Senate); see also *Myers v. United States*, 272 U.S. 52, 128-29 (1926).¹³ What troubled this Court in *CAAN*

¹³ The principle behind these cases is simple: Congress can prescribe procedures and qualifications for appointment to office, including the requirement of a nominating list created by agents of Congress, as long as these qualifications do not amount to a "legis-

was that under the unamended Transfer Act, appointments were made from lists of *only* Members of Congress, with no requirement that the lists contain more recommendations than the number of Board openings. *CAAN*, 501 U.S. at 268. *CAAN* noted that “[t]he list system, *combined* with congressional authority over committee assignments, guarantees Congress effective control over appointments.” *Id.* at 269 (emphasis added).

The 1991 Amendments removed any requirement that members of the Board of Review sit on particular committees, or, indeed, even be Members of Congress. As for the lists themselves, the amended Transfer Act ensures the Authority’s appointment discretion by expressly authorizing it to request additional names if it is not satisfied with the names on the lists. *See* 49 U.S.C. app. § 2456(f)(1). But the court below dismissed the significance of the Authority’s power to request additional names, asserting

lative designation” of the appointee. *See Myers*, 272 U.S. at 128-29. As one district court synthesized the rule, the appointment power is confined by such limitations as the authority creating the office sees fit to impose as long as such limitations are not a legislative designation of the appointee: “In general, Congress, pursuant to its power to create inferior federal offices, has the power to prescribe reasonable qualifications for office; while the President, pursuant to his constitutional power of appointment, has the authority to select for appointment *from among those designated by Congress as qualified.*” *Mow Sun Wong v. Hampton*, 435 F. Supp. 37, 41 n.6 (N.D. Cal. 1977), *aff’d*, 626 F.2d 739 (9th Cir. 1980), *citing Myers*, 272 U.S. 52, 128-29 (emphasis added); *see also* 29 Op. Att’y Gen. 254, 256 (1911) (“Congress may point out the general class of individuals from which an appointment must be made, if made at all, but it can not control the President’s discretion to the extent of compelling him to commission a designated individual.”). Moreover, the findings of the court below on this issue were in conflict with the circuit’s decision in *FEC v. NRA*, where the court rejected as nonjusticiable a separation of powers challenge to the statutory qualifications for FEC appointment because only the appointing power would know whether it was constrained by the statutory limitations. 6 F.3d 821 (D.C. Cir. 1993) (citing numerous authorities for the proposition that an appointing power may view statutory restrictions as not legally binding).

that "we have little doubt who would win a test of wills." *Hechinger*, slip op. at 9; App. at 9a. This view ignores the fact that this Court in *Bowsher* upheld a statute with an identical non-exhaustive list provision. See generally *Bowsher*, 478 U.S. 714 (1986) (construing 31 U.S.C. § 703 which provides, *inter alia*, that, in appointing a Comptroller General from a congressionally prescribed list, "[t]he President may ask the commission [of Members of Congress] to recommend additional individuals," 31 U.S.C. § 703(a)(3) (1988)).¹⁴ More troubling, the court of appeals' willingness to construe the amended Transfer Act in the way most likely to raise constitutional doubt violates the canon, long applied by this Court, of construing statutes to avoid constitutional problems where possible. See, e.g., *NLRB v. Catholic Bishop of Chicago*, 440 U.S. 490 (1979); *Kent v. Dulles*, 357 U.S. 116 (1958); *Ashwander v. Tennessee Valley Auth.*, 297 U.S. 288, 348 (1936) (Brandeis, J., concurring). A plainer reading of the statute, that at the Authority's request Congress will provide additional names, would comport better with this Court's long-followed canons of statutory construction and would render illusory the concerns of the court below.

In reaching the conclusion that the Board of Review is an agent of Congress, the court of appeals' decision also ignores the fundamental principle that the power of removal represents the dispositive factor in defining the character of an agency. See *Myers*, 272 U.S. at 134 (traditional executive office characterized by authority of President to "remove [the officer] without delay"); *Hum-*

¹⁴ *Bowsher*, of course, concluded that the Comptroller General was an agent of Congress, but this conclusion was based solely on congressional removal power, thus indicating not only that the power to remove is determinative but also that the appointment power itself does not establish the character of the office for purpose of separation of powers analysis—otherwise both the Comptroller General and the Chief Justice of the United States would be federal executive officers since they are appointed by the President.

phrey's Executor v. United States, 295 U.S. 602, 628 (1935) (Federal Trade Commission not an Executive Branch agency because President's removal power is limited by statute); *Wiener v. United States*, 357 U.S. 349, 353 (1958) (members of presidentially-appointed War Claims Commission not within Executive Branch because President does not have removal power); *Bowsher*, 478 U.S. at 727-28 (Comptroller General is agent of Congress rather than the Executive because, although appointed by the President, he is "removable only at the initiative of Congress"). Under the original Transfer Act, this Court concluded that the ability of the congressional leadership to change committee assignments vested removal power in Congress. *CAAN*, 501 U.S. at 269. But under the amended Transfer Act, members of the Board of Review are removable only by the Authority and not by Congress. 49 U.S.C. app. § 2456(f)(11). Thus, by holding that members of the Board of Review are agents of Congress even when Congress has no power to remove them from office, the court below has adopted a rule fundamentally at odds with this Court's prior decisions, including *CAAN*.

Lastly, the court of appeals' opinion assumes that, because some members of the Board of Review are Members of Congress, the Board of Review must be characterized as an agent of Congress. See *Hechinger*, slip op. at 8; App. 8a-9a. On this point petitioners respectfully submit that the court below misread this Court's reasoning in *CAAN* and overlooked the fact that a non-federal, interstate agency rather than a federal entity is at issue. In *CAAN*, the Court acknowledged the Framers' intent that Members of Congress not be precluded from holding non-federal office. *CAAN*, 501 U.S. at 270 n.16. Nor did *CAAN* suggest that Members could not serve on an advisory board. *CAAN*, 501 U.S. at 267; see also *Mistretta v. United States*, 488 U.S. 361, 400-01 (1989) (describing longstanding tradition of inter-branch membership of boards and commissions). What primarily prompted this

Court to hold that the Board was in fact an agent of Congress was the requirement that Board members be members of certain congressional committees, thereby allowing committee assignments to dictate removal and appointment of Board members. *See id.* As noted above, the 1991 Amendments cured the Transfer Act of this defect.

In sum, Congress carefully amended the Transfer Act to eliminate its control over the appointment of Board members, to eliminate its control over the removal of Board members, to eliminate its veto power over decisions of the Airports Authority, and to create general, neutral qualifications for Board membership. In fashioning these changes Congress was guided by this Court's decision in *CAAN* and by other precedents discussing agency relationships under separation of powers doctrine. Petitioners respectfully submit that the decision of the court below wrongly implied an agency relationship between Congress and the Board of Review based on analysis contrary to the longstanding decisions of this Court.

CONCLUSION

For all of the foregoing reasons, a writ of certiorari should issue to review the judgment of the United States Court of Appeals for the District of Columbia Circuit.

Respectfully submitted,

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